R&S SERVICES (YORKSHIRE) LTD
EMPLOYEE HANDBOOK

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INTRODUCTION

Welcome

If you have recently joined our Company, we extend a warm welcome to you and hope that you will enjoy working with us both now and in the future.

We aim to foster a working environment where all employees can operate in a safe, open and trusting environment, with all employees having respect for each other.

We embrace diversity in the workplace and are committed to ensuring equal opportunities for all our staff. We will not condone any discriminatory acts or attitudes, whether perpetrated by our staff, or towards our staff.

We ask that you study carefully the contents of this handbook as it sets out our rules and procedures and other information which may be useful to you. If you have any queries regarding this handbook, please speak to your Line Manager.

Once you have read and digested the information contained in this booklet, please sign and date your individual Statement of Particulars.

The contents of this handbook may well be amended from time to time as a result of changing legislation, as our Company's needs change, or for any other reason we deem appropriate. You will be informed of any such changes as they happen.

Job Roles

Whilst you have been employed in a particular job role, we may need you to carry out various duties outside of this role and it is a condition of your employment that you do so when required. We will only ask you to perform duties which we feel you are capable of performing.

Place of Work

To ensure the effective and efficient running of the Company as a whole, you may need to work at locations other than ones you are accustomed to and it is a condition of your employment that you do so when requested.

YOUR EMPLOYMENT WITH US

We believe that our staff are our greatest assets. For many of our staff, you are the face of our Company and as such, clients, customers and members of the public will judge us on how you perform your job and present yourself to them.

We aim to provide you with the information and skills necessary for you to carry out your job to the best of your ability.

Probationary Period

When commencing employment with us, the initial period of employment will be on a probationary basis and is normally for six months'. This period of time is to allow us to assess your performance and for you to decide if you wish to continue your employment with us. At any time during this period we may, if we are unhappy with your progress, extend your probationary period or, if we feel it is appropriate, terminate your employment without recourse to our full disciplinary/ capability procedures. You should not consider your probation period passed until confirmed in writing.

Induction

Your induction programme is designed so that you fit in quickly and effectively. During your induction you will normally be issued with your Statement of Particulars, advised of the core company rules and given an explanation with regard to the Company's health, hygiene and safety procedures.

Personal Details

It is important that we have up to date and accurate records of your personal details, such as telephone number, address, next of kin name and address, bank details etc.; therefore if any of the details which we hold change, it is imperative that you notify your Line Manager, in writing, as soon as possible.

Training

We understand that if staff are properly trained to carry out their duties, they will be able to do so more effectively and efficiently. If you feel you need any further training at any time during your employment to enable you to carry out your job properly, you should discuss the matter with your Line Manager to evaluate your situation.

Appraisal and Review

We will carry out regular appraisals with you with a view to maximising your potential within our Company. The appraisal should be a two way process, giving you ample time and opportunity to discuss your role. The aim of the appraisal is to identify where you excel, where you need any further help or guidance, and if appropriate, agree future objectives. You will then have regular, informal update meetings throughout the year to measure your progress against the objectives.

Enhanced Disclosure and Barring Check Agreement

A Disclosure and Barring Enhanced Disclosure may be applied for if you do not have it and any future checks. In the event that you leave our service within 6 months for whatever reason, we reserve the right to deduct the cost of DBS certificate from your final pay.

Business Miles

If an employee uses their own vehicle for business use the mileage must be claimed back at the agreed rate on an expense form. The mileage claim rate for private vehicles is 0.45p per mile.

All expenses claims must be signed off by your Line Manager before submitting to the Finance Department.

Driving your own vehicle on company business

If you use your own vehicle for business purposes, it is your responsibility to ensure that it is insured for business use. If you fail to insure your vehicle for business use or your insurance refuses to pay out for any claims the Company will not be responsible for any cost or damage incurred. You must also ensure that the car has a valid MOT certificate and you have a valid driving licence.

We may ask you to produce any of the above documents as proof at any time and it is a condition of your employment that you do so when required.

If driving is an essential part of your job with us and you fail to provide the above documents for scrutiny by us, we may have no alternative other than to terminate your employment, however, we may consider adjustments to your job role.

If you receive a summons or conviction which could affect your insurance cover, then you must notify the Directors immediately.

Driving licence

If your job role requires you to be able to drive in order to complete your duties to our satisfaction, it is a term of your employment that you hold a current, valid driving licence which must be provided to the company at the commencement of your employment and at intervals throughout your employment when requested.

If you lose the right to hold this licence for whatever reason the company will consider reasonable adjustments to your employment which may result in a change of job role, however the company also reserve the right to terminate employment if adjustments are not reasonable.

If at any time during your employment you are unable to provide a current driving licence the Company reserves the right to begin disciplinary proceedings which may result in the termination of your employment

REMUNERATION

Payments
Your normal rate of pay, frequency and method of pay is detailed in your Statement of Particulars.

Deductions and Overpayments
Your pay is subject to any necessary Income Tax and National Insurance as detailed on your payslip. If you are late or absent from work, we may also make a deduction, based on your normal rate of pay for the time you were absent, (save for any statutory payments such as Statutory Sick Pay (SSP), time off for ante-natal appointments, or contractual sickness pay etc.).

If any overpayments' are made, for whatever reason we will inform you as soon as possible of the amount and reason for the overpayment. We will then normally deduct the amount overpaid from the first payment to you after discovery of the overpayment. If you are overpaid at any time, you must inform your Line Manager immediately. Failure to do so could be regarded as a disciplinary offence.

Deductions will also be made by us if a court order is in place instructing us to do so, or for any other amount we are contractually allowed to deduct or to which you agree.

Clocking in and out
To comply with health and safety regulations you must clock in any time you enter the building, and you must clock out any time you leave the premises. You must not for any reason falsely clock another person in or out of the building, unless authorised to do so by your Line Manager. Failure to adhere to this instruction will result in disciplinary action.

Lateness and Absence
If you arrive for work late, we will make a deduction from your pay based on your hourly rate of pay. If you arrive for work more than one hour late and have not notified us before your expected starting time and/or, without having provided us with an acceptable reason for the delay, we may find it necessary to cover your duties, or disperse your workload to other staff, or reschedule work in other ways. In the event of one of these scenarios we reserve the right to send you home for the remainder of the day without pay.

Lay Off and Short Time Working
If we are unable to provide you with work we may need to lay you off for a period of time or reduce your working week whilst we try to resolve the situation. If you are laid off work, you will receive either statutory guarantee pay or your normal basic wage, whichever is the lower, for up to five days (pro-rata) of lay off. After this period, there will be no entitlement to payment for any days not worked. We will normally only invoke this right as a last resort and for as short a time as necessary. Your continuity of employment with us will be protected during such a situation.

HOLIDAYS

Holidays

Your annual holiday entitlement, including public/bank holidays, are detailed in your Statement of Particulars.

We believe that your holidays from work are an important aid to balancing your working life with your life away from work and for health reasons. We encourage you to take your full entitlement each year. We will not normally allow you to carry forward any of your holiday entitlement from one year to the next, nor will we make any payment in lieu of unused holiday entitlement.

You should request a holiday form each time you wish to book a holiday away from work. You will be notified as soon as possible if you are authorised to take the time off work on your preferred dates. Requests for time off will not be unreasonably refused, however due consideration will need to be given to the impact of your absence on the Company.

We strongly advise that you ensure you have obtained authorisation to take the time off before you commit yourself outside of work. If, for example, you book a holiday with a travel company and we cannot support your request for time away from work, we will not be held accountable for any monies you stand to lose as a result. If you choose to take the time away from work irrespective of the fact that your request has been refused, we will treat this as a disciplinary offence and will invoke our disciplinary procedures.

If you know that you will want to take specific days away from work as holidays, we recommend that you submit your request as early as possible to avoid disappointment. In any event, we require a minimum of one weeks' notice for a single days holiday and four weeks' notice for any holidays in excess of a day, unless this is not possible due to unforeseen circumstances, and due consideration will be given to your request. You will not normally be granted more than two working weeks consecutively.

ABSENCE FROM WORK AND LATENESS

Attendance

You should arrive at work in sufficient time to actually start working at your normal starting time. Whilst we understand that on limited occasions, unexpected occurrences may impact your ability to attend work, or may cause you to arrive late. Lateness and absence have an adverse impact to both the business and other employees and we trust that you will take a positive approach to punctuality and attendance at work.

Reporting Absence or Lateness

If you are unable to attend work, or get to work by your expected starting time, you should notify your Line Manager personally as soon as possible, and no later than 8.30 am, to allow us to take the necessary action to cover your absence and minimise any impact it may have.

If the Manager is unavailable, ensure you speak with another member of the management team.

You should inform your Line Manager of the reason for your absence and how long you expect to be away from work. We will then agree with you any further reporting procedures you may need to comply with prior to your return to work.

You should always report your absence yourself by telephone or by text message if there is no answer when you call. You should not ask another person to call on your behalf and you should not notify us by email or any other medium.

Failure to abide by the absence reporting procedures will normally be considered unauthorised absence and may result in the employee being liable to loss of pay for the period of absence and to disciplinary action.

This will not normally be remedied by the subsequent receipt of a back-dated medical certificate.

Fit notes

Your doctor or Healthcare Professional may feel that it is appropriate to suggest that whilst you are unable to carry out your job in its current form, you may be fit for work with some adjustments. If so, your Registered Manager will discuss your doctor's or Healthcare Professional's recommendations with you and where possible we will consider reasonable adjustments.

Returning to work after a period of absence

You should notify your Registered Manager the day before your return to allow us to give sufficient notice to cancel any arrangements we may have made with any individual to cover your workload during your absence. If you arrive for work without such notification, we may send you home from work for the day without pay.

If you have been suffering from any contagious or infectious disease you should ensure that your doctor or Healthcare Professional is happy for you to return before you do so. Upon your return to work you will be required to attend a return to work interview/complete a return to work.

If we feel that your lateness and/or absence are unacceptable, we may invoke the disciplinary process, which could ultimately lead to your dismissal.

Absence due to sickness or injury

If you are absent for a period in excess of seven calendar days, (irrelevant if these constitute your normal working days or not) you should provide us with a medical certificate from your GP, Healthcare Professional or other relevant medical practitioner. Such medical certificates should then be forwarded to us on a regular basis to cover the whole period of your absence. If your absence is for a period of seven calendar days or less, you will be required to complete a Self-Certification of Absence form on the first day of your return to work.

The above documentation is required irrelevant of whether or not you qualify for any payment during your absence.

Dependent upon your circumstances, you may be eligible for SSP during your absence, in line with current legislation. However, if you fail to follow our procedures for reporting and certifying your absence without good reason, we may withhold payment of SSP Payments and/or any contractual sick and injury payments and/or may treat it as a disciplinary matter.

Submission of medical certificates, although validating your reason for absence, will not necessarily prevent us from taking appropriate action, including invoking the disciplinary process, if we feel your cumulative absence from work is excessive.

Depending upon the circumstances of your absence/s from work, we may ask you to allow us to approach your GP or another member of the medical profession with a view to obtaining further information on your condition. We may then consider if there are any reasonable adjustments which we could implement to help you to improve your attendance. It may be necessary, if acceptable solutions cannot be found, to terminate your employment with us, in line with current legislation.

If you qualify for SSP this will be paid to you at times and in the manner you would normally receive your pay. Failure to supply the relevant certification of absence will result in non-payment of SSP. You will not normally receive SSP (statutory sick pay) for the first 3 days of sickness which is classed as ‘waiting days’ unless you have been off sick and getting SSP within the previous 8 weeks.

If you pursue a claim for compensation from any person, company or other entity for the injury or illness you incurred, you should consider including loss of income in the claim as we reserve the right to recover any SSP we made to you during your absence from work from any compensation which may be awarded to you.

Company Sick Pay

Current Company sick pay policy is subject to certain eligibility criteria, and you may may be paid up to 7 days full pay in case of medical absence in any 12 month period.

This is the standard entitlement for employees; please refer to your individual contract for further details.

All Company sick pay includes any SSP entitlement.

No Company sick pay will be paid for employees who are still in their probationary period or under any stage of disciplinary measures.

Company sick pay is paid when you are absent from work due to illness or injury subject to the provisions set out below and provided that you:

- comply with our rules and regulations relating to sickness absence, notification of sickness and the payment of sick pay in force at the time; and
- have not previously been refused time off/ annual leave on that date; and
- have completed a Return-to-Work Form and, where applicable have provided a Fit Note from your doctor;
- have not refused to attend a medical examination if requested by the Company; and
- that you have not been off work due to sickness on 2 or more occasions during the rolling 6-month period prior to your first day of absence.

If the above conditions do not apply, your entitlement will be restricted to Statutory Sick Pay only. If you are sick on two or more occasions in a 6-month period, the Company reserves the right to withdraw further Company sick pay until your attendance improves and may start formal proceedings.

Time Off for Medical Appointments

If you need to visit the doctor or dentist, wherever possible, you should arrange the appointment outside of your normal working hours. If the doctor or dentist cannot facilitate this then the appointment should be made as close to your starting or finishing time as possible or taken as annual leave subject to the holiday booking procedures.

You should discuss the absence with your Line Manager and give us as much notice as possible of your intended absence from work. Whilst we appreciate that this is not always possible with an emergency GP appointment, you would normally be given adequate notice to attend other kinds of appointments. Other than for emergency appointments you should provide us with a copy of your appointment card, letter etc. In the event of an emergency appointment we may ask you to provide evidence of your appointment so that we can monitor your on-going welfare.

Such time off will normally be without pay.

Time Off for Dependants

There may be occasions when you need to take a reasonable amount of time off during working hours to deal with unforeseen matters and emergencies relating to a dependant. A dependant could be a spouse, partner, child, parent, or someone who depends on you for care.

The leave can be taken for example to:

- Deal with a breakdown in childcare;
- To put longer term care in place for children or elderly relatives; or
- If a dependant falls ill or is taken into hospital.

You have a statutory right to a reasonable amount of time off to deal with any such matter. The legislation does not prescribe what amount of time is reasonable but does suggest that in most cases a day or two will be sufficient to deal with the immediate crisis. If you wish to take time off work you must speak to your Line Manager to discuss your situation and agree a reasonable amount of time away from work, which will normally be without pay.

Time Off for Parental Leave

If you have at least twelve months service with us and you wish to exercise your right to take parental leave, please speak to your Line Manager who will advise you further regarding your entitlement and agree the time off at a time agreeable to both you and the Company. Parental Leave is unpaid leave.

Time Off for Maternity

If you become pregnant, we recommend that you speak to your Line Manager in confidence as soon as you are aware of your condition. Your safety and that of your unborn child are important to us and we would want to look at any adjustments we may need to make to your work or working conditions to help ensure that you are both kept safe.

We would also ensure that you were made fully aware of both your obligations and entitlements at an early stage, to help you plan.

Time Off When Adopting a Child

If you are adopting a child, you may be entitled to time away from work on adoption leave and may qualify for Statutory Adoption Pay. If you are adopting a child, your Line Manager will be able to advise you of your rights and obligations.

Time Off for Paternity Leave

If your partner is pregnant or you are both adopting a child, you may be entitled to take time away from work, which dependent upon your circumstances may command Statutory Paternity Pay. Please speak to your Line Manager who will explain in full your obligations and your rights.

Shared Parental Leave

Should you wish to exercise your right to Shared Parental Leave, you should contact your Line Manager who will discuss your individual entitlements should you meet the eligibility requirements.

Time Off for Bereavement

In the sad event of a bereavement of a member of your family (not a child under 18) or a close friend, please discuss your circumstances with your Line Manager and agree appropriate time away from work. Pay for such time off is discretionary.

Statutory Parental Bereavement Leave

Should you suffer a loss of your child you will be entitled to 2 weeks statutory bereavement leave. Subject to you meeting the qualifying conditions may include statutory bereavement pay. Please speak to your Line Manager who will explain in full your obligations and your rights.

Severe weather

We understand that you may face difficulties getting to work and returning home during periods of severe weather. Whilst we are committed to protecting the health and safety of all our employees, in order to maintain our levels of customer service and efficiency we need to ensure that any disruption caused to the business remains minimal.

Reasonable efforts to attend work

You should use their best endeavours to attend work in all circumstances. However, it is not our intention that you put yourself at unnecessary risk when attempting to attend work. You should use your own judgment and, if unable to attend work, you should notify your Line Manager as soon as possible to discuss the situation and agree an appropriate course of action.

Lateness
If you are delayed in getting to work because of severe weather, we will try to give you the opportunity to make up this time up at a later date to avoid any loss of pay. However, this is at the discretion of your Line Manager and if not possible a deduction may be made from your pay.

Absence
If it is evident that you have made all reasonable efforts to get to work but failed to do so because of severe weather conditions, we will consider the following an alternative to you losing pay for non-attendance: -

- Consider a request to take the time as annual leave; or
- Make up the time at a later date.
- Lay you off on statutory guaranteed pay

When making this decision, we will take into account your individual circumstances (e.g. distance from your home to work, mode of transport available), and the needs of the organisation.

Jury Service

You are entitled to time off work to fulfil your obligations with regard to Jury Service. In the event of you being summoned to attend for Jury Service, you must notify management immediately on receipt of the Jury Summons, giving details of the dates you are required to attend Court.

You are reminded to ensure that an expenses claim is submitted to the Court in accordance with the available allowances for travelling, subsistence and your financial loss.

You are not entitled to payment for this time off, as you can claim allowances from the Court.

If you are retained on Jury Service for a prolonged period, you have an obligation to notify the Company and must keep in regular contact throughout. You must return to normal working immediately following your release from Jury duties.

BEHAVIOUR AT WORK

Dress Code

When working for us, you are representing the Company, and as such clients, customers, members of the public and other persons will judge our Company on how you present yourself and how you behave.

It is therefore, important that all our employees take care with their personal hygiene and grooming at all times. Clothes appropriate to your job role must be worn at all times whilst at work.

Where items of uniform or work-wear are provided, you must wear these whilst at work and they should be clean and tidy.

If you are issued with items of Personal Protective Equipment, then these must be worn at all times as appropriate or as instructed. Your failure to do so will be treated as a serious matter and may lead to disciplinary action.

Alcohol, Medication and Drugs

Whilst we understand that you have a right to a private life and would not wish to impede on that, it is also important that, when attending work, you are fit to do so. Therefore, if we suspect that you attend work still under the influence of alcohol or any drug which has been consumed or taken prior to you commencing work, we may send you home for the remainder of the day without pay. Such events may also result in disciplinary action.

Possession or consumption of alcohol or drugs during your working hours is strictly forbidden. If you are found to have done so you will be subject to disciplinary action, which may lead to your summary dismissal for gross misconduct.

If you are prescribed any medication by a medical professional, or you are taking any ‘over-the-counter” medication which may affect your performance at work, you must notify your Line Manager so that appropriate action may be taken, if necessary, to ensure the safety of yourself or any other person.

Dispensing, distributing, possessing, using, selling or offering to buy controlled drugs at work is prohibited. Any such activity (including reasonable suspicion of it) on the Company's premises may be reported immediately to the police and will incur the disciplinary process. We consider such actions to be Gross Misconduct.

Any employee who is required to drive in the course of their employment must not drink immediately before driving and must not take any drugs or medication that would impair your driving. You must be satisfied that you are competent to drive and would not be in breach of any law or regulation in doing so. Driving on Company business whilst under the influence of alcohol in excess of the legal limits will be considered to be gross misconduct.

If you are taking any prescription or over the counter drugs and are unsure if you should drive you should talk to your doctor, pharmacist or healthcare professional in addition to notifying the Manager.

Telephones

The Company’s telephones are for business use only. Whilst we appreciate that you may wish to make or receive occasional personal calls, these must be kept to an absolute minimum and only when authorised. If we feel that the calls are excessive in quantity or length then we will charge you for the cost of the calls, by deducting the appropriate cost from your pay. Dependent upon the circumstances, you may also be subject to disciplinary action.

If you are issued with a Company mobile phone, the same rules apply. You must also take great care with such items. If the phone is lost, stolen or damaged because of your negligence or malicious action then we will again deduct the cost from any monies owing to you by the Company and may also invoke the disciplinary process.

Your mobile phones should be kept with your personal belongings during normal working hours. Under no circumstances should the use of any mobile phone, whether personal or Company owned, be allowed to compromise the safety of yourself or others.

Selling of Goods at Work

If you intend to sell any items whilst at work, permission must first be given by your Line Manager. No pressure should be put on any member of staff to buy any items. Under no circumstances may you sell any item to any customer or client, or sell any item which could be seen to be working in competition with us. Authorised items may only be sold on our premises during recognised breaks.

Under no circumstances should any items be taken from site that have come in from the waste stream. You must seek prior authorisation from a Director to take any items from site which must not be sold on.

Collections at Work

Whilst we will not unreasonably object to small occasional collections for birthdays etc., you must first obtain permission from your Line Manager before arranging any collection to enable us to ensure that the nature of the collection and the number and frequency of collections does not become a burden to any employees. We will not normally allow clients or customers to be approached to add to any collection.

Losses or Damages

Whilst we understand that accidents do happen, we expect that you should take all reasonable care with all Company, clients/customers, or any third party's property. If we suffer any loss or damage to any property or stock or equipment which is due to your failure to follow our rules or procedures, or your deliberate vandalism, or unreasonable carelessness or neglect, then we will deduct the cost of repair or replacement of any item from any salary/wage, holiday pay, sickness payment or any other monies owed to you by the Company.

If we suffer any loss, fine or cost due to your actions and failure to follow our rules, procedures or legal requirements, or your carelessness or neglect, then we will deduct the cost of the loss or fine from any money owed to you by the Company.

Employee's Property

We request that you do not bring any of your own unnecessary personal property with you during working hours. Any personal property that you do bring with you is your own responsibility and the Company will not accept any liability for any loss or damage that is caused to your personal property.

Company equipment and tools

The company provides the equipment necessary for you to carry out your day to day duties. You are required to keep any tools in good repair and take steps to ensure that they are kept secure at all times. You must report any loss, damage or mislaid tools to your Line Manager immediately.

All company equipment and tools must be returned prior to the termination of employment or at any other time on request. Failure to return company property or returning equipment in an unsatisfactory condition may result in the cost of repair or replacement being deducted from any monies owing to you. This is an express written term of your contract of employment.

Engineers are expected to supply your own set of basic hand tools. The company will provide larger and specialist equipment necessary.

General Behaviour and Standards

An efficiently run Company is our aim and we expect you to help us achieve this goal. You play an important role in ensuring that we operate in a cost-effective and efficient manner. In particular, we expect that you handle all stock and property etc. with care to minimise any loss or damage. You should always try not to waste energy by leaving any unnecessary lighting, heating or equipment turned on when not in use and that, if your job role is quiet or you have a downturn in work, you help other colleagues as

appropriate. If there is no work of your own to complete, then look for other work, if you can find none speak to your Line Manager.

Under no circumstances should you take any action which may compromise the health or safety of yourself or others.

Other Work

If you wish to carry out any private or additional work in your own time, you must discuss the matter in advance with your Line Manager and gain written authorisation. Whilst we will not unreasonably forbid you from performing such work, we will need to ensure that you are not working in competition with us or performing work which the Company could reasonably have been expected to carry out.

If you are found to be working in competition with us or carrying out work which could have been performed by the Company, or carrying out your own private work during the Company's time we will view this as Gross Misconduct and it could lead to your summary dismissal.

Carrying out any private work should not impact on your performance at work. If such work takes you over an average of 48 hours' work a week (in total for both jobs) then you will be required to sign a 48 hour opt-out form.

Accident / Near Miss Reporting

Any accident or incident at work, no matter how small, should be detailed in the Accident Book, in accordance with Company guidelines. It is important that all accidents are recorded as the entries will be monitored by the Company so that we can take all necessary steps to ensure that all our employees and any visitors to our premises are as safe as possible from the risk of harm.

More serious accidents, and any accident to a visitor on our premises, should also be brought to the attention of your Line Manager as soon as possible.

You must also record any near misses to your Line Manager.

Smoking

Smoking, including the use of electronic cigarettes, is not allowed on our premises or at any public entrance to our premises. Smoking is only allowed in the designated outside area and only during your authorised break times. If you are taking a break, you must clock off as soon as you leave your work station and clock back in only when you are ready to commence work again. After smoking, you should ensure that you wash your hands and take whatever steps are reasonable to ensure that you do not return to your workplace smelling of smoke. Your failure to comply with these rules may result in disciplinary action.

Emergency Evacuation Procedures

You should make yourself aware of the procedures to be followed should it be necessary to evacuate any work related premises in an emergency, (e.g. a Fire Alarm sounded).

Security of Premises

If you are issued with a key for our premises, you must ensure that any keys are kept safe and secure at all times.

Under no circumstances are you allowed to make copies or give authority for an unauthorised person to use the key(s).

If Company keys are lost, or stolen as a result of the above procedures not being followed, we will deduct the cost of replacement keys and locks to the appropriate property from any monies owing to you.

The Manager must be informed immediately if your key(s) are lost or stolen. Your failure to comply with these rules may result in disciplinary action.

If you are the last member of staff to leave the premises at the end of your shift you must ensure that all customers and other individuals have left the building, all lights and electrical equipment has been switched off, the alarms are activated, doors and windows are closed and locked, and the premises are left safe and secure.
At the termination of your employment, by either party and for whatever reason, you must return to us by no later than your last working day, all keys which are in your possession.

Confidentiality

Any information that has been acquired by you regarding our business, our clients or customers, suppliers, associated companies, or any other persons or bodies with whom we have dealings of any sort (and which has not been made public by us or with our express authority) shall be treated as confidential information.

You must not disclose any such information either during your employment with us or after termination of employment without our prior written consent (except as required by law).

You should take all steps to safeguard any such information. This includes all documentary information held on any medium. Upon termination of employment, or at any other time when so requested, any information which you hold in written form or stored on any kind of storage device must be returned to us.

Care must be taken when discussing our business that you cannot be overheard (e.g. in corridors, on the telephone etc.).

Breaches of confidentiality will be dealt with using our disciplinary procedures and, dependent upon the circumstances, may be regarded as Gross Misconduct, which could lead to your summary dismissal.

Health and Safety Statement

Our Company is committed to, and accept, our responsibilities for ensuring, so far as is reasonably practicable, the health, safety, welfare and wellbeing at work of all employees and to ensuring that the Health and Safety of visitors, contractors and the general public are not affected as a result of the activities of our Company. This is fully in keeping with the requirements of the Health and Safety at Work etc. Act 1974 (HASWA), and other relevant legislation. We take safety seriously and we will set clear action plans to improve our performance. Everybody in the company must ‘play their part’ so if you see something that is unsafe, ‘don’t walk by’, take appropriate action. Remember that Health and Safety is not just the responsibility of management, but for everyone who works for the Company.

EMAIL AND INTERNET POLICY

Email and internet usage are an important part of effective communication and information gathering within the workplace. They can be a fast and reliable method of communicating both internally and with outside bodies such as customers or clients, suppliers etc., therefore can have obvious significant advantages to our business.

Email and internet usage is limited to legitimate business purposes only. Personal usage is not allowed whilst at work.

Equipment and Data Security

If you are issued with any equipment such as a laptop, mobile phone with email or internet access, PDA, etc. You should take all reasonable steps to ensure the safekeeping of both the equipment and any data either stored, or displayed on any such device. If any such equipment is lost, damaged or stolen as a result of your negligence, we may deduct the cost, or partial cost, of the repair or replacement of any items, from any monies owing to you. We may also invoke the disciplinary process.

All data relating to our business, including that relating to any person in any way related to our business such as a customer or supplier etc. must not be stored on any equipment which does not belong to the Company. If you are found to have done so you will be liable to disciplinary action.

Care should also be taken to protect the data from being accessed or read by any unauthorised person. You should therefore ensure that your computer screen is switched off when away from your workstation. If you are accessing information from a mobile device then care should be taken to ensure it cannot be read by anyone around you (e.g. if sitting in a cafe or on the train etc.) The Data Protection code of practice should be adhered to at all times when dealing with sensitive personal data.

If passwords are issued, then you should not give your password to any other person, either within the organisation or external to it.

Our email and internet systems may only be used by persons authorised by the Company to do so.

Unauthorised access may result in disciplinary action.

You must not modify any existing systems, programmes, information or data without permission from your Line Manager. When deleting any information, you should ensure that such a deletion could not have an adverse effect on the Company or expose us to any risk.

You are forbidden from downloading or installing any software from any source without express permission. This includes using USB flash drives, PDA, mobile phone etc.

E-mail Usage

Email can be used both to contact and pass information to others both formally and informally.

Care should be taken to ensure the most appropriate method of communicating with each party is used. You should remember that any offer or contract etc. is just as binding when sent by email as by any other way. The Company's standard disclaimer should always be in evidence on emails sent by you.

Care should be taken when transmitting personal, sensitive or confidential information. If you are unsure you should check if the recipients email address is confidential and that they know the nature of the information being transmitted.

You should not breach any copyright or intellectual information when transmitting information.

You should not send any inappropriate material to any party which could be deemed to be offensive, abusive, obscene, discriminatory, harassing, defamatory or derogatory, whether or not the recipient indicates they would not object. If you receive any transmission which you deem to be offensive or upsetting, you should immediately notify your Line Manager.

Additionally, you should not:

- Use the system for personal use
- Send or forward chain mail, junk mail, jokes, gossip etc.
- Use the system for trivial and unnecessary messages

Internet Usage

When you visit websites, devices are often employed to enable the site owner to identify the source of the visit. It is therefore important that you only visit reputable sites which are necessary for the performance of your duties.

You must not visit any site or download any information which is illegal, immoral, offensive, abusive, obscene, discriminatory, harassing, defamatory or derogatory. If you have reason to believe any other employee is doing so, you should report your concerns to your Line Manager as soon as possible.

You should not attempt to access any information which you know is restricted and you are not authorised to view.

Personal use of our internet system is forbidden.

Monitoring

The Company reserves the right to monitor all email and internet usage to ensure adherence to this policy regardless of whether the usage is during or outside of normal business hours. Subsequently any private usage should be authorised by your Line Manager. We will monitor the use of our email and internet system, including where appropriate opening and reading emails (in line with Data Protection legislation). It is therefore important that you do not send any personal emails, particularly of a sensitive or embarrassing nature.
We will monitor usage to ensure:

- Company policies, standards and guidelines are being followed
- To provide evidence of transmissions and communication
- To ensure there is no unauthorised usage

Use of Social Media

You are forbidden from accessing social media for personal purposes whilst at work, whether on our computer equipment or your own (except for during authorised breaks). Social media is a type of interactive online media that allows parties to communicate instantly with each other or to share data in a public forum. This includes online social forums such as Twitter, Facebook and LinkedIn. Social media also covers blogs and video- and image-sharing websites such as YouTube and Flickr; however, this is not an exhaustive list.

We understand that many employees make use of social media in a personal capacity. While you are not acting on behalf of the Company, you must be aware that you can still damage the Company if you are recognised as being one of our employees.

Whilst you are allowed to say that you work for us, and sometimes want to discuss your work on social media you must not make any derogatory comments regarding our business, other employees, Management, our clients or customers, suppliers, or any other person, business or other entity in any way connected to our business. This applies whether or not it is on our equipment or your own and if communicated in works time or your own time.

Your online profile username (for example, the name of a blog or a Twitter name) must not contain the Company's name.

If you do discuss your work on social media (for example, giving opinions on their specialism or the sector in which the organisation operates), you must include on your profile a statement along the following lines: "The views I express here are mine alone and do not necessarily reflect the views of my employer".

Any communications that you make in a personal capacity through social media must not:

1. Bring the Company into disrepute, for example by:
    - criticising or arguing with customers, colleagues or rivals;
    - making defamatory comments about individuals or other organisations or groups; or
    - posting images that are inappropriate or links to inappropriate content;
2. Breach confidentiality, for example by:
    - revealing trade secrets or information owned by the Company;
    - giving away confidential information about an individual (such as a colleague or customer contact) or organisation (such as a rival business); or
    - discussing the Company's internal workings (such as deals that it is doing with a [customer/client] or its future business plans that have not been communicated to the public);
3. Breach copyright, for example by:
    - using someone else's images or written content without permission; or
    - failing to give acknowledgement where permission has been given to reproduce something;
4. Do anything that could be considered discriminatory against, or bullying or harassment of, any individual, for example by:
    - making offensive or derogatory comments relating to age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex, sexual orientation, or perceived sexual orientation;
    - using social media to bully another individual (such as an employee of the Company); or
    - posting images that are discriminatory or offensive or links to such content;
5. Be of a nature which would cause us to lose faith in your integrity, or any of our customers to lose faith in the integrity of the Company.

To summarise:

You must not make any derogatory comments regarding our business, other employees, Management, our clients or customers, suppliers, or any other person, business or other entity in any way connected to our business. This applies whether or not it is on our equipment or your own and if communicated in works time or your own time.

You should also take care to limit who has access to view your comments or photographs etc. on such sites. Alternatively if your behaviour is deemed to have brought the Company into disrepute, or caused any client, supplier, other business or any other entity connected to our business, to lose faith in the Company's integrity, you will be liable to disciplinary action, which dependent upon the circumstances, could lead to your summary dismissal.

General Data Protection Regulations

As an employer it is our responsibility to ensure that any documentation we hold is relevant, accurate and where necessary up to date. As an employee you have the right, upon written request, to be informed of what personal data is being processed, we are not obliged to supply this information unless you make a written request, we will respond to any request within one month of receipt.

In addition to the details contained within your individual Statement of Particulars, you will also have the right to be informed of the source of the data (if not received direct from yourself) and to whom it may be disclosed. However, your data will only be used to comply with the contract of employment (i.e. to process your pay) or to comply with legal obligations imposed by outside bodies i.e. the Police. Your data will not be used outside of the European Economic Area (EEA).

You have the right to make a request for your personal data to be erased or amended, such requests should be made in writing to the Manager and must include the reason for your belief that the data is either incorrect or being held unlawfully.

EQUAL OPPORTUNITIES AND VALUING DIVERSITY POLICY

Introduction

We are committed to Equal Opportunities for all individuals or groups, whilst also, being committed to promoting a positive attitude towards diversity within our Company. We aim to ensure that all employees have the opportunity to maximise their potential and enhance their self-development and their contribution to the Company.

The aim of our Company is to embrace the differences that various cultures bring into our Company and we also recognise that people from different backgrounds can bring fresh ideas and perceptions, which ultimately can improve our products and services, and our working environment. Managing diversity successfully will help our Company to nurture creativity and innovation, thereby allowing us to tap hidden capacity for growth and improved competitiveness.

Valuing diversity is an effective way of dealing with equal opportunities issues. It emphasises the business and personal benefits that accrue from valuing the differences between people, rather than just complying with the law. We believe that organisations that grasp the additional business opportunities generated by managing diversity effectively are far more likely to enjoy a sustained competitive advantage than those who do not.

The aim of this non contractual policy is to ensure that every member of staff feels valued at work and is not discriminated against, harassed or bullied, or made to feel under threat or intimidated, either directly, by association or indirectly, on the grounds of age, disability, gender reassignment, marriage and civil partnership, pregnancy and maternity, race, religion or belief, sex, sexual orientation, or perceived sexual orientation.

We recognise our duty of care to all members of staff and are committed to treating every individual equally in line with this policy and the Equality and Human Rights Commission Code of Practice.

Where necessary, the company will consider reasonable adjustments to ensure that any individual with a disability is not at a disadvantage. In all relevant cases the company will consult with the individual and the decision whether or not to make reasonable adjustments will take into account all relevant factors, including, where necessary, referrals to outside organisations.

Recruitment and Selection

We will uphold equal opportunities for all during our recruitment process. Candidates will be recruited solely on their own merits and their ability to carry out the job role. Interview questions and selection processes will be relevant to the job and will not be of a discriminatory nature.

Recruitment and selection will be made by matching the best person to the job role.

We will aim to take steps to ensure that knowledge of vacancies reaches a wide labour market and, where relevant, groups under-represented in the Company. Where appropriate, use may be made of lawful exemptions to recruit suitably-qualified people to cater for the special needs of particular groups.

Short listing and interviewing of candidates will be carried out by more than one person where possible.

Training and Promotion

Any opportunities for training within the Company will normally be made known to all employees.

Selection for training will be made in line with this policy and will be made solely on the merits of the particular situation.

Vacancies will be advertised internally and individuals given the opportunity to apply for any posts. Selection for interview will be in line with the recruitment and selection details above.

Monitoring

We aim to monitor all applications from both internal and external candidates with a view to ensuring the effectiveness of our procedures. Such monitoring will not be used as part of the selection criteria for selection of new staff or for selection of existing staff for training or promotion opportunities, or any other decision related to your employment with us. All information gathered is stored separate from your personnel file and application forms.

HARASSMENT AND BULLYING POLICY

Introduction

It is important that individuals work together in a professional manner and with mutual respect for each other. Everyone has the right to dignity at work and individuals should be aware of the results their actions or comments may have on others, both within our Company and outside.

We are committed to encouraging and maintaining good employee relations and a working environment in which every member of staff feels safe and can work effectively.

We will not tolerate any form of harassment or bullying towards any of our staff, or by any of our staff, and will take any accusation of such behaviour seriously. If we receive a complaint, or become aware of any harassment or bullying we will take all relevant steps to stop such behaviour and take whatever action is appropriate against the perpetrator.

You should be aware that in some cases, such behaviour may be a criminal offence and the perpetrator could be arrested and charged by the police.

Statement of Policy

This policy applies to all staff working within the Company and to all employees working off the premises. It extends to include non-permanent workers such as secondees, contractors, agency, temporary staff, consultants and any other workers. The policy, in addition, covers the behaviour of staff outside working hours which may impact upon work or working relationships.

You are responsible for your own behaviour and for ensuring that your conduct is in accordance with the principles set out in this policy. You should also report any instance of bullying or harassment which you witness or which comes to your attention.

No employee will be victimised or suffer detriment for making a complaint of harassment or bullying.

What is Harassment and What is Bullying?

Harassment

Harassment may be defined as any conduct which is unwanted and uninvited and has the result of causing the recipient to feel humiliated or distressed or upset in any other way. It can be conduct of a verbal, non-verbal or physical nature. Harassment has the effect of violating a person's dignity or creating an intimidating, hostile or degrading atmosphere.

Harassment may be an isolated occurrence or repetitive. It may occur against one or more individuals.

Bullying

Bullying means offensive, intimidating, malicious or insulting behaviour, an abuse or misuse of power intended to undermine, humiliate, denigrate or injure a colleague.

Bullying does not include legitimate and constructive criticism of performance or behaviour, an occasionally raised voice, or an argument. Examples of bullying include ridiculing or demeaning others, particularly junior colleagues, overbearing supervision and unjustifiably excluding colleagues from meetings/communications.

Examples of harassment or bullying could include:

- Physical abusive or threatening behaviour
- Humiliating an individual
- Picking on one person when there is a common problem
- Shouting at an individual to get things done
- Consistently undermining someone and their ability to do the job
- Setting unachievable targets or excessive workloads
- Overbearing and intimidating levels of supervision
- Insensitive jokes, banter or pranks
- Unwanted physical contact or standing too close to someone
- Malicious gossip, jokes and banter, offensive language
- Offensive literature or pictures, graffiti and computer imagery
- Excluding individuals from conversations or activities, non-co-operation
- 'Horseplay' – including touching, pushing, pinching, name-calling, mocking, belittling etc.

Harassment and Bullying is any behaviour that is unwanted or uninvited by the person to whom it is directed. It is the effect that the behaviour has on the recipient rather than the intent of the perpetrator which is the measure of whether or not bullying or harassment has occurred. It is totally unacceptable and we will always treat complaints of bullying and harassment seriously.

How to Make a Complaint

Very often people are not aware that their behaviour is unwelcome or misunderstood and an informal discussion can sometimes solve the problem. However, if you feel you are being bullied or harassed, we realise that the situation may be sensitive and may make you feel vulnerable or in fear of reprisal and therefore, may make it difficult for you to raise a complaint. Subsequently, we suggest you consider discussing matters informally with your Line Manager, in confidence, who will then be able to support you when pursuing the matter. If you feel able to do so, you should then raise the matter informally with the perpetrator.

If this does not solve the problem, or if the matter is more serious, (or if you do not feel able to do so,) you should report the matter to your Line Manager as a formal complaint. You will then be required to put the complaint in writing.

Formal Complaint

We endeavour to manage complaints in a timely and confidential manner via an investigation to establish full details of what happened. Your name and the name of the alleged harasser will not be divulged other than on a "need to know" basis to those individuals involved in the investigation. At the outset, someone with no prior involvement in the complaint will be appointed. The investigation will be impartial and objective, and will be carried out with sensitivity and with due respect for the rights of all parties concerned.

Consideration will be given to whether the alleged harasser or bully should be redeployed temporarily, or suspended on contractual pay or whether reporting lines or other managerial arrangements should be altered pending the outcome of the investigation.

As part of the investigation, the person will meet with you to hear your account of the events leading to your complaint. You have the right to be accompanied by a colleague of your choice. The investigating officer will also meet with the alleged harasser or bully who may also be accompanied by a colleague. It may also be necessary to interview witnesses to any of the incidents mentioned in your complaint. Where it is necessary to interview witnesses, the importance of confidentiality will be emphasised to them.

At the conclusion of the investigation, the outcome of the findings will be notified to both you and the alleged harasser usually within two weeks of your complaint first being reported.

If the conclusion is that harassment or bullying has occurred, prompt action will be taken to stop the harassment or bullying immediately and prevent its recurrence. The findings will be dealt with under the disciplinary procedure. Consideration will be given to whether the harasser or bully should be dismissed and, if not, whether he or she should remain in his or her current post or be transferred. Even where a complaint is not upheld, (for example, where evidence is inconclusive), consideration will be given to how the on-going working relationship between you and the alleged harasser or bully should be managed. This may involve, for example, arranging some form of mediation or counselling or a change in the duties or reporting lines of either party.

Should the investigation show that there may be a case to answer the Company's disciplinary procedure will be invoked against the alleged perpetrator.

Confidentiality

At all times throughout the process and after, all parties involved, will give due consideration to confidentiality. As such, all parties will be reminded that they should not breach confidentiality and should not discuss the matter with anyone outside of the procedure.

Details of the investigation and any subsequent disciplinary procedure which may take place, will be kept on the employees personnel file.

Untrue Claims

Whilst we will support all parties during and after a thorough and objective investigation into the allegation as appropriate, if through the course of the investigation and subsequent disciplinary meetings evidence demonstrates that the allegation has been made maliciously, or for personal gain, then the individual making the complaint will be subject to Disciplinary proceedings as outlined in the Company's Disciplinary Policy.

Appeals

If you are not satisfied with the outcome of the investigation, you have the right to appeal the decision within 7 calendar days of being notified of the outcome. You should submit your full written grounds of appeal to your Line Manager. The person hearing your appeal will meet with you to discuss your appeal. You may be accompanied by a colleague or Trade Union Official. You will normally be notified of the outcome of the appeal within fourteen days of this meeting. This is the final stage of the formal procedure.

WHISTLE BLOWING POLICY

Introduction

We have both a grievance procedure and a bullying and harassment procedure in place to enable you to lodge a grievance relating to your own employment.

The whistle-blowing policy is intended to cover other serious concerns which fall with the Public Interest Disclosure Act 1998. We are committed to running our business with honesty and integrity and within the restraints of the law. As such whilst legislation protects you from suffering a detriment at work if you take a matter to a relevant outside body, we would hope that you would feel able to bring any concerns you may have to the attention of your Line Manager with confidence that any such concern would be dealt with appropriately and swiftly and without any fear of reprisal, even if your belief of wrongdoing turns out to be unfounded as the result of a thorough investigation.

Whistle Blowing is the everyday term used to describe a disclosure made to someone in authority alleging corruption, malpractice or wrongdoing on the part of another person. In employment whistle blowing refers to an employee ("whistle blower") making a disclosure about a colleagues conduct in the course of employment, or about employer's practices

The Legal Position

Employees and workers who make a 'protected disclosure' are protected from being treated badly or being dismissed as a result of making the disclosure. The Act offers protection to any person who makes a disclosure relating to the following serious offences:-

- criminal offences,
- risks to health and safety,
- failure to comply with a legal obligation,
- a miscarriage of justice
- environmental damage
- abuse of a service user.

For a disclosure to be protected it must be made to an appropriate body. For example, disclosing a health and safety issue to the Health and Safety Executive is likely to be protected, but not if the concern was disclosed to the media. The raising of a concern will be covered by this policy provided you have a reasonable belief that the disclosure is made in the public interest.

Procedure

We are committed to the highest possible standards of operation. In line with that commitment we encourage you to consider raising the matter with your Line Manager before taking the matter to an outside body. We will take all such concerns seriously and any individual raising legitimate concerns under this policy will not be subjected to any detriment either during or after employment. All such concerns raised will be thoroughly investigated and appropriate action taken accordingly.

Safeguarding Complaints

We recognise that the decision to report a concern can be a difficult one to make and we will support you during the process. We will not tolerate any harassment or victimisation (including informal pressures) and will take appropriate action to protect you when you raise a concern to us in good faith.

Every effort will be made to keep the identity of the whistle blower who makes a disclosure under this policy confidential, at least until a formal investigation is under way. In order to ensure that a fair investigation can take place the whistle blower will also be expected to keep the fact that they have raised a concern, the nature of the concern and the identity of those involved confidential. It may be that during an investigation, disciplinary or legal proceedings that the company no longer maintains the whistle blowers confidentiality. If that does occur then the company will endeavour to notify the whistle blower in advance.

Untrue Allegations

If you make an allegation, but it is not confirmed by the investigation, no action will be taken against you. If, however, you make an allegation maliciously, vexatious, or for personal gain, disciplinary action may be taken against you and, dependent upon the circumstances, this may be treated as Gross Misconduct.

DISCIPLINARY PROCEDURES

Introduction

We have developed our disciplinary procedures in order to provide clear and transparent structures for dealing with difficulties which may arise as part of the working relationship and to ensure that such difficulties are dealt with in a fair and equitable manner.

We would hope to informally resolve potential disciplinary issues. However, where an issue cannot be resolved informally, then there is often no option other than to follow a formal process. This policy sets out the basic requirements of fairness that will be applicable in most cases.

We regard disciplinary action as a corrective measure to foster an improvement in the conduct or attitude of the employee concerned and not as a punishment. Disciplinary procedures are necessary to let all of our employees know what is expected of them in terms of standards of performance or conduct (and the likely consequences of continued failure to meet these standards) and to enable management and employees to determine suitable goals and timescales for improvement in an individual's performance or conduct. The following procedures do not form part of your contract of employment.

The Process

There will normally be a full investigation of the facts before a decision to take any disciplinary action is invoked. Dependent upon the circumstances, we may hold an independent investigation meeting to determine if a formal disciplinary hearing is necessary. At all stages of the process, we will ensure that matters are kept confidential and expect you to do the same.

If we feel that it is necessary to take disciplinary action, we will notify you in writing of our concerns. Where relevant, we will supply you with details of any evidence we will be using in the disciplinary hearing. You will be given a reasonable amount of notice to attend the meeting and to arrange for another member of staff or a Trade Union Official to accompany you.

If we regard an offence as potential Gross Misconduct, we may suspend you on your normal contractual pay for the duration of the process. This period will be kept as short as is reasonably practical to investigate the matter, hold any necessary disciplinary hearing and consider the outcome.

At the meeting, we will outline our concerns and you will be given ample opportunity to explain your version of the situation and also to bring any supporting evidence to our attention. You may also ask witnesses to deliver their version of events to support you if you so wish. We will listen to what you say and will consider all points you put forward before reaching a decision on whether any disciplinary sanction is to be imposed. No decision will be made regarding any disciplinary action before we have had time to consider the discussion and any evidence produced at the meeting.

Outcome of the Meeting/s

After the meeting has concluded we will take time to consider all the evidence and we will take one of the options listed below:

1. No Action

   If we feel that there is no case to answer, or there is insufficient evidence to support any action or if we feel that you were genuinely unclear about what was expected from you and you agree to take remedial action, we may decide it is appropriate to take no further action.

2. Warning

   If we feel that you have not presented a valid reason or supporting evidence for the misconduct, we will issue you with a formal warning. Dependent upon the circumstances, this could either be a formal verbal warning, a written warning, or a final written warning.

   Except for cases of Gross Misconduct or a short period of service, we will not normally proceed to dismissal for a first offence.

3. Dismissal
   If you are in receipt of prior warnings, we may decide to terminate your employment with us, giving you your contractual notice. If your misconduct is determined to be Gross Misconduct, then you will be summarily dismissed, (without any notice or pay in lieu of notice), irrelevant of whether or not you have had any previous warnings.
4. Demotion

   If you are in a supervisory or managerial position, we may decide to demote you, except in the case of Gross Misconduct.

Notification of Outcome of the Disciplinary Meeting

We will notify you, in writing, as soon as we have considered the evidence and have reached a decision. The timescale will depend upon the complexity of the situation however, this will normally be no more than 7 calendar days after the meeting has taken place, unless there is good reason why this cannot be so. The letter will outline our reasons for the decision made and, where disciplinary action is taken, the level or nature of the sanction imposed. It will also name the person to whom you should address an appeal to, should you wish to do so.

Right to be Accompanied

You have the right to be accompanied by a fellow employee of your choice, or by a Trade Union Official at all stages of the formal disciplinary procedures and at any subsequent appeal meetings.

It is your responsibility to arrange for the appropriate person of your choice to be informed of the matter and the dates of the hearing/s. If you wish a member of staff to accompany you, then either yourself or the person concerned, should notify us as early as possible, so that we can ensure that they can be released from their duties at the appropriate times.

We wholeheartedly support the right to be accompanied and any person who agrees to accompany a member of staff at any disciplinary or appeal hearing, will not be subject to any form of detriment as a result of doing so.

Record-Keeping

We will take notes of all meetings held and these, along with any supporting evidence used in the investigation and meetings will be held on your personnel file. Details of any disciplinary action taken will also be kept.

Administration of Disciplinary Warnings

Warnings will normally be issued in line with the following guidelines, however this is not prescriptive. When deciding the level of action to be taken, we will take account of any mitigating factors, including your length of service and may vary the process or the administration of warnings accordingly. Dependent upon your length of service, you may be dismissed without any previous warnings.

OFFENCE	1st OCCASION	2nd OCCASION	3rd OCCASION	4th OCCASION
UNSATISFACTORY CONDUCT	Formal verbal warning	Written warning	Final written warning	Dismissal
MISCONDUCT	Written warning	Final written warning	Dismissal	
SERIOUS MISCONDUCT	Final written warning	Dismissal		
GROSS MISCONDUCT	Dismissal			

Examples of Unsatisfactory Conduct and Misconduct

- Failure to comply with our health and safety rules.
- Gambling.
- Smoking outside of designated areas and/or outside of your authorised break times.
- Unacceptable levels of absenteeism or lateness.
- Failure to follow our absence reporting procedures.
- Unsatisfactory work performance.
- Failure to carry out reasonable management instructions.
- Failure to comply with company rules, procedures and guidelines.
- Use of objectionable or insulting language or behaviour.
- Failure to report any damage to our property or premises caused by you or witnessed by you.
- Breach of our email and internet policy, including excessive personal use.
- Deliberate misuse or neglect of company property or vandalism.
- Excessive use of the Company's telephone for personal calls.
- Negligence in the performance of your duties.
- Leaving your place of work without prior authorisation.
- Unauthorised use of our vehicles.
- Allowing unauthorised people to use our vehicles.

Serious Misconduct

Dependent upon the circumstances, any of the above examples could be deemed to be Serious Misconduct and as such, if a disciplinary sanction is imposed this could be a final written warning even though no other warnings have been given.

Examples of Gross Misconduct

- Theft or fraud.
- Physical violence or bullying.
- Threatening behaviour or language.
- Being under the influence of alcohol.
- Attending work under the influence of illegal drugs, or being in possession or supplying illegal drugs whilst at work or during working hours.
- Any action, or breach of health and safety rules which does, or could be expected to, endanger the health or safety of yourself or any other person.
- Acceptance or administration of gifts or hospitality etc. without prior permission from the Company.
- Bribing or attempting to bribe another individual, or personally taking or knowingly allowing another person to take a bribe.
- Any act or omission which could cause the reputation or integrity of the Company to be compromised or bring the Company into disrepute.
- Discriminatory behaviour.
- Deliberate fraudulent or false claims of bullying, harassment or victimisation.
- Accessing internet sites or downloading information from such sites, which contains offensive, illegal, obscene or pornographic material.
- Knowingly perpetrating or taking part in acts of Discrimination or Harassment.
- Providing false information re your right to work in the UK.
- Deliberate and serious damage to property.
- Causing loss, damage or injury through serious negligence.
- Unauthorised use or disclosure of confidential information or failure to ensure that confidential information in your possession is kept secure.
- Serious misuse of the Company's information technology systems (including misuse of developed or licensed software, use of unauthorised software).

NB: the above lists are neither exhaustive nor prescriptive in the level of disciplinary sanction which may be imposed. You may be disciplined for any other reason which is considered misconduct or unsatisfactory conduct.

When considering the level of disciplinary action to be taken against individuals, we will take into account both the severity of the offence, the impact on the Company or other individuals and any mitigating circumstances.

Therefore, the above categories are guidelines only and a higher or lower level of disciplinary action may be imposed, dependent upon the circumstances.

Validity Period of Warnings

We will keep a record of warnings issued and appeal details in your personnel file. Whilst such information will normally be kept in your personnel file permanently, it will normally be disregarded for further disciplinary purposes in line with the following:

Verbal warning – after a period of 3 months
Written warning – after a period of 6 months
Final warning – after a period of 12 months

Authority to Take Disciplinary Action

The following persons are authorised to take disciplinary action. This does not prevent another member of staff, or other appropriate nominated person to take such action.

DISCIPLINARY SANCTION	Person/s authorised to take disciplinary action in the case of: ALL STAFF
Formal verbal warning	Director / Managing Director
Written warning	Director / Managing Director
Final written warning	Director / Managing Director
Dismissal	Director / Managing Director
Demotion	Director / Managing Director

Appeal Process

If you feel you have been treated unfairly in the disciplinary process, or that the sanction imposed was too heavy or unfairly administered, you have the right of appeal.

You should write to the person detailed in the outcome letter, within 7 calendar days of the date of the letter, outlining the grounds for your appeal.

We will then arrange to hear your appeal, normally no more than 14 calendar days after receipt of your letter of appeal.

In interests of fairness, your appeal will normally be held by a different person than the one who held the meeting at which the decision was taken to terminate your employment.

We will notify you in writing of the decision, normally within 14 calendar days of the hearing.

Short Service

We reserve the right to take into consideration your length of service. If you have short service, you may not be in receipt of any warnings prior to dismissal.

CAPABILITY PROCEDURES

Introduction

During your employment with us, there may come a time when, through no fault of your own, you become incapable of carrying out your duties fully or in a timely fashion.

This could be for many reasons, such as:

- Changes within the Company which affect your job
- New equipment or tools etc.
- Health Issues

If such a situation arises, we aim to support and help you to overcome any difficulties which prevent you from performing in your job role. With this is mind, we have developed these non-contractual procedures to ensure fairness and sensitivity when dealing with such issues.

Stage 1

If we have concerns about the level of your performance at work, we will meet with you to discuss our concerns. You will be encouraged to be open and honest with us if there are any circumstances which are affecting your performance.

At this meeting, we will advise you what standards are expected and also agree with you any help and appropriate timescales which you may need to achieve those standards. The help and any timescales set will obviously be relevant and appropriate to your situation but could include things such as training or re-training, reasonable adjustments, transfer to another more suitable job role, coaching etc. It may also be appropriate for us to ask you for access to your medical records to allow us to facilitate any relevant help or reasonable adjustments to enable you to work effectively. Whilst you do not have to comply with this request, we would ask that you co-operate if the need arises.

Stage 2

1. Incapability Due to Health Issues

If your inability to perform your job effectively is due to an on-going health issue, it may be advisable for us to obtain input from the medical profession to aid us in helping you. As such, we may ask for permission to contact your GP or any other person in the medical profession who has knowledge of your illness or condition (e.g. a consultant or other specialist etc.).

Our aim of seeking such information is to help us to consider if any, reasonable adjustments would be appropriate for your situation and also for us to consider any other advice the medical professional could give to help us to protect your employment with us. However, if upon receipt of such medical information, it is apparent that you are unable to continue in our employment, we may have no alternative, than to terminate your employment with us.

2. Incapability due to Non-Health Issues

If your performance does not improve to the required standards set within the prescribed timescales, you will be invited, in writing, to a second meeting to discuss your performance. If no acceptable improvement has been made, you may be issued with a written warning. If an acceptable improvement has been made, we will not issue any warnings at this stage, but will continue to monitor your performance.

You will again be notified of what improvements are expected from you and a third meeting will be arranged to review your progress. If, at this further meeting, your performance is still unacceptable, you may be issued with a final written warning. If an acceptable improvement has been made, we will not issue any further formal warning, but will continue to monitor your performance.

You will again be notified of the improvements needed and a fourth meeting will be arranged to review your progress. If at this meeting there has not been an acceptable improvement in your performance, we may take the decision to terminate your employment. If there has been continued or further improvement, we will decide whether further reviews of your performance are necessary.

Monitoring and Support

At all times throughout this procedure, we will monitor your performance and consider relevant support to help you to reach the required levels.

Appeal Process

If the decision is taken to issue any formal warnings or to terminate your employment, you will have the right to appeal against such a decision. You should write to the person detailed in the outcome letter, within 7 calendar days of the date of the letter, outlining the grounds for your appeal.

We will then arrange to hear your appeal, normally no more than 14 calendar days after receipt of your letter of appeal.

In interests of fairness, your appeal will normally be held by a different person than the one who held the disciplinary hearing.

After full consideration of the matter, you will be informed, in writing of the decision as soon as is reasonably practical and normally within 14 calendar days of the meeting.

Right to be Accompanied

You have the right to be accompanied by a fellow employee of your choice or by a Trade Union Official at all stages of the capability procedure and at any subsequent appeal meeting.

It is your responsibility to arrange for the appropriate person of your choice to be informed of the matter and the dates of the hearing/s. If you wish a member of staff to accompany you, then either yourself or the person concerned, should notify us as early as possible, so that we can ensure that they can be released from their duties at the appropriate times.

We wholeheartedly support the right to be accompanied and any person who agrees to accompany a member of staff at any capability or appeal hearing will not be subject to any form of detriment as a result of doing so.

Record-Keeping

We will take notes of all meetings held and these, along with any supporting evidence used will be held on your personnel file. Details of any action taken will also be kept.

Short Service

We reserve the right to take into consideration your length of service. If you have short service, you may not be in receipt of any warnings prior to dismissal.

GRIEVANCE PROCEDURE

Introduction

From time to time you may feel unhappy with something at work. We feel that it is important that there is a clear and transparent procedure for such concerns or complaints to be dealt with both effectively and in a manner whereby employees feel comfortable to raise such issues.

It is usually in the best interest of both employers and employees to deal with any issues at an early stage to stop small issues growing into more complex or serious ones. The following procedures are non-contractual.

Informal Procedure

If you feel able to raise any issues informally with the perpetrator or your Line Manager then such discussions can frequently solve issues quickly and effectively. However, if the matter is more serious, or the informal route has not solved the situation, or you do not feel it is appropriate to raise the matter informally, you should make a formal representation under this procedure.

If you are being harassed or bullied, this procedure is not normally the best way to raise such a matter and you should use the procedures outlined in our Bullying and Harassment Policy as this will be a more appropriate route to solving the problem.

Formal Procedure

If you wish to raise a formal grievance, it is advisable that you put the matter in writing from the outset. You should give as much detail as possible of the nature of your complaint. The written complaint should be given to your Line Manager.

A meeting will be arranged with you as soon as possible to hear your grievance. It may be necessary to suspend the meeting to gather further evidence, or to initiate a full investigation of the facts. We will aim to resolve the issue as quickly as possible and will not suspend the meeting unnecessarily.

At the end of the meeting, and after any necessary re-investigation etc. we will consider all the evidence gathered. We will notify you, in writing, of our assessment and what, if any, action we intend to take to resolve the situation. The letter will outline who your appeal should be directed to if you wish to do so. We aim to notify you of the decision as soon as is reasonably practical.

Appeal

If you are unhappy with the outcome of the meeting and any proposed action, then you have the right of appeal. You should write to the person detailed in the outcome letter, within 7 calendar days of the date of the letter; outlining the grounds for your appeal.

Should you appeal our decision we will then arrange to hear your appeal, normally within no more than 14 calendar days after receipt of your letter of appeal.

In interests of fairness, your appeal will normally be held by a different person than the one who held the initial grievance meeting.

After full consideration of the matter, you will be informed, in writing of the decision as soon as is reasonably practical and normally no longer than 14 days after the meeting has been held.

Right to be Accompanied

You have the right to be accompanied by a fellow employee of your choice, or by a Trade Union Official at all stages of the formal grievance procedure and at any subsequent appeal meetings.

It is your responsibility to arrange for the appropriate accompanying person of your choice to be informed of the matter and the dates of the hearing/s. If you wish a member of staff to accompany you, then either yourself or the person concerned, should notify us as early as possible, so that we can ensure that they can be released from their duties at the appropriate times.

We wholeheartedly support the right to be accompanied and any person who agrees to accompany a member of staff at any grievance or appeal hearing will not be subject to any form of detriment as a result of doing so.

Record-Keeping

If you choose to use the formal route to resolve your grievance, we will take notes of all meetings held and these, along with any supporting evidence used will be held on your personnel file. Details of any action taken will also be kept.

DRIVING OUR VEHICLES

Authority to Drive

Before you are allowed to drive any of our Company vehicles, you must provide a copy of your full licence to us and any other relevant documentation. We will need to see your Driving Licence and a photocopy will be taken and held in your employee file.

Throughout your employment with us, you may be asked to produce your licence on a regular basis and it is a condition of your employment that you do so when requested.

If your role requires you to drive in the course of your employment and you lose the right to hold this licence for whatever reason the Company will consider reasonable adjustments to your employment which may result in a change of job role, however the company also reserve the right to terminate employment if adjustments are not reasonable.

It is your responsibility to ensure that you do not allow anyone to drive who is not authorised to do so by the Company.

Before driving any of our vehicles you must ensure you are fit to do so. You must not drive under the influence of alcohol, illegal drugs or any medication that could affect your driving. If you are caught driving under the influence of any of these substances you may be prosecuted. This may also result in disciplinary action.

Tax and Insurance, etc.

The Company is responsible for ensuring that the vehicle has road tax, and insurance, however, you should check that the tax is valid. Otherwise if you are found to be driving an unlicensed or untaxed vehicle, you will be held accountable by the authorities.

Maintenance and Repairs

We will endeavour to ensure the vehicles are regularly serviced and have a valid MOT certificate. If you are aware that the vehicle has not been serviced or MOT's on time, you must immediately report the matter to your Line Manager and should not drive the vehicle until you have been assured that it is legal to do so.

Any mechanical problems with the vehicle must be reported to your Line Manager immediately.

It is the driver's responsibility to check tyre pressure of all tyres, oil and water levels on a regular basis and to ensure that the vehicle has adequate supplies at all times.

The vehicle must be cleaned internally and externally on a regular basis. It is the driver's responsibility to keep the vehicle clean.

Use of the Vehicle

The vehicle must not be used for private use. Please ensure no unauthorised persons are carried as passengers, at any time the vehicle is driven, as this would invalidate the insurance cover in the event of an incident or accident. If you are found to have done so, this may be regarded as Gross Misconduct and could lead to your summary dismissal.

The vehicle is to be used only in connection with company business. Any contravention will result in the cost of the fuel used for the journey/s being deducted from any monies owing to you and could render you liable to disciplinary proceedings.

Excess Insurance

If at any time an individual driver has an excessive claims record, and as a result of that the Company insurers impose an increased excess, the Company driver may have to bear the amount of this excess.

Fuel

We will reimburse you for all fuel used on official Company business. Office based staff will not be reimbursed for travel to and from the office. You must complete an expenses form and submit to your Line Manager on a monthly basis. If you knowingly claim for fuel which was not used on legitimate Company business, this will be regarded as gross misconduct and could lead to your summary dismissal.

Fuel cards

If you are issued with a company fuel card it is to be used solely for legitimate business purposes only furthermore all transactions should be supported by a valid receipt. In the event that you wish to use the company fuel card for any reason you are required to gain the authorisation from your Line Manager.

Any award points or other similar loyalty benefits are the property of the Company and as such failing to notify us of such awards or making use of any award points or other similar loyalty benefits may be deemed as misappropriation of company property and may result in disciplinary action which may lead to your summary dismissal. You must ensure that the Company fuel card is kept in a safe secure location at all times.

In the event that you lose the company fuel card or if it is stolen it is your responsibility to notify your Line Manager immediately.

If you knowingly use the Fuel card for fuel which was not used on legitimate Company business, this will be regarded as Gross Misconduct.

Loss or Damage to the Vehicle

Employees are required to report any loss or damage to any company vehicle to your Line Manager immediately and then to provide a written report to the Company on the next following working day.

You will also be given an insurance form to complete and return to us by the next working day at the latest.

If the Loss or damage is as a result of your negligent behaviour, or your failure to follow company rules and procedure, we may deduct the cost of the repair or the insurance excess (whichever is the lesser) from any monies owing to you.

Accidents

In the event of an accident involving the vehicle, you must notify the Company as soon as possible after the accident. In line with our insurer's guidelines, you should not admit liability for the accident with the other party.

The Company vehicle user is responsible for obtaining particulars of any persons involved in the accident as well as the names and addresses of witnesses. An accident report form must be completed within 24 hours of the date of the accident and given to your Line Manager.

Employees are required to pass on to the Company any correspondence received, unanswered, by return post and these matters will be dealt with promptly by the Company.

If the accident is as a result of your negligent behaviour, we may deduct the cost of the repair or the insurance excess (whichever is the lesser) from any monies owing to you.

Motoring Offence/Fines

Any motor offences committed by you whilst driving the Company vehicle will be your responsibility, including any fines imposed to the vehicle whilst it is in your possession. We will not pay for any fines. If we receive a summons on your behalf, we will notify the issuer of your name and address. If the fine remains unpaid, we may pay the fine and deduct the cost from any monies owed to you by us.

Use of Mobile Phone Whilst Driving

It is illegal to use a mobile phone whilst driving unless using an approved hands-free kit. If the use of a mobile phone with a hands free kit results in an accident or dangerous driving, the driver can still be prosecuted, e.g. for driving without due care and attention etc.

We do not encourage you to use a mobile phone whilst driving. If there is another person in the vehicle they should use the phone instead. If you do take any calls whilst driving, you should only take such calls if you consider it safe to do so and the call should be kept very brief and only when using a hands free kit. If it is not safe to take the call or the call is likely to be lengthy, you should park the vehicle, where it is safe to do so, and return the call as soon as possible.

Safety of Vehicles and Their Contents

Equipment, tools or any property whether private or company owned should not be left in an unlocked vehicle, even for short periods of time. If we suffer a loss from an unlocked vehicle, we will deduct the cost of replacement of such tools from any wages or other monies owing to you.

Vehicles should not have keys left in the ignition, without the driver being sat in the driving seat, irrelevant of the time period involved. All vehicles should be locked when no-one is in attendance. If a vehicle is stolen or damaged under such circumstances we may deduct the cost of the insurance excess, which is currently £500.00, from your pay or any other monies owing to you.

Trackers

All of our Company vehicles are fitted with tracking devices. Information will be collated regarding journeys made. We will use the devices to ensure that we can trace our vehicle should it be stolen but may also use any of the information gained in any disciplinary process if we regard it as appropriate.

TERMINATION OF EMPLOYMENT

Resignation

If you wish to resign from the Company, to avoid any confusion, we ask that you state your decision and your reasons for doing so in writing.

Whilst we appreciate that individuals may have many differing reasons for leaving, we will then invite you to an exit interview to discuss your reasons and to ensure that we process your final pay etc. correctly.

We normally retain records of final interviews, so to allow us to monitor and evaluate our working practices at a later date.

Notice Period

Your required notice period will be detailed in your individual Statement of Particulars. If you fail to work your notice and we incur a cost in covering your duties, we reserve the right to recover this cost from any monies owing to you. You will also forfeit any contractual holiday pay which you have accrued in excess of the statutory minimum entitlements.

Garden Leave

If either you resign or you are dismissed, we may put you on garden leave. If so, you are still employed by us until the effective date of termination. As such, we may require that you attend work or make yourself available to answer any questions etc., or to “handover” to another person in the Company.

If we feel it is inappropriate for you to attend our premises or those of any customer, or client, or to contact any customer, client, supplier, contractor etc., we will advise you of this at the time the garden leave is initiated.

Company Property

Upon termination of employment, or upon commencement of Garden Leave, you must return all company property to us. This includes, but is not limited to, tools, equipment, documentation, vehicles (where provided for business use only), work-wear, items of uniform, keys etc.

If you fail to return all items to us in a reasonable condition, we may deduct the cost of recovery, replacement or any loss incurred by us from any monies owing to you.

SUMMARY OF OUR RIGHTS TO DEDUCT

WE RESERVE THE RIGHT TO RECOUP ANY LOSSES THE COMPANY INCURS IN THE CIRCUMSTANCES LISTED BELOW FROM YOUR WAGES OR ANY OTHER MONIES OWING TO YOU (E.G. COMMISSION, BONUSES, ACCRUED HOLIDAY PAY AT TERMINATION OF EMPLOYMENT).

If any overpayment of wages is made, for whatever reason, we will normally deduct the amount overpaid from your next wage.

If you arrive for work more than one hour late and have not notified us before your expected starting time and/or, without having provided us with an acceptable reason for the delay, we may find it necessary to cover your duties, disperse your workload to other staff, or reschedule work in other ways and if so, we therefore reserve the right to send you home for the remainder of the day without pay. If we feel that your lateness or absence is excessive, we may invoke the disciplinary procedures, as detailed earlier in this handbook.

If we are unable to provide you with work we may need to lay you off for a period of time or reduce your working week whilst we try to resolve the situation. If you are laid off, you will receive either statutory guarantee pay or your normal basic wage, whichever is the lower, for the first five days of lay off or short time working. After this period, there will be no entitlement to payment for any days not worked. We will only invoke this right as a last resort and for a limited period of time. Your continuity of employment with us will be protected during in such a situation.

Whilst we understand that you have a right to a private life and would not wish to impede on that, it is also important that, when attending work, you are fit and safe to do so. Therefore, if we suspect that you attend work still under the influence of alcohol or any illegal drug which has been consumed or taken prior to you commencing work, we will send you home for the remainder of the day without pay. Such events may result in disciplinary action.

Whilst we understand that accidents do happen, we expect that you should take all reasonable care with all Company, clients/customers, or any third party's property. Therefore, If we suffer any loss or damage to any property or stock or equipment which is due to your failure to follow our rules or procedures, or your deliberate vandalism, or unreasonable carelessness or neglect, then we will deduct the cost of repair or replacement of any item from any payments due to you including, holiday pay, contractual sickness payment or any other monies owed to you by the Company.

If we suffer any loss, fine or cost due to your actions and failure to follow our rules, procedures or legal requirements, or your carelessness or neglect, then we will deduct the cost of the loss or fine from any money owed to you by the Company.

If you have an accident in one of our vehicles and, after a full investigation of the facts, the accident is deemed to have been caused by your negligent or reckless behaviour, or could have been otherwise easily avoided, we reserve the right to deduct the cost of repair, or the insurance excess (whichever is the lesser) from any monies owing to you. Such a deduction will be subject to a maximum of the insurance excess which is currently £500.00.

Any motor offences committed by the driver whilst driving our vehicle will be the responsibility of that driver, including any fines imposed. We will not pay for any fines. If we receive a summons on your behalf, we will notify the relevant issuer of the name and address of the driver of the vehicle. If the fine remains unpaid, we may pay the fine and deduct the cost from your wages or any other monies owing to you.

Employees are required to report any loss or damage to any of our vehicles immediately and then to provide a written report to him on the next following working day. If the Loss or damage is as a result of your negligent behaviour, or your failure to follow the company's rules and procedure, we will deduct the cost of the repair or the insurance excess (whichever is the lesser) from any monies owing to you.

Any tools, stock and equipment should not be left in an unlocked vehicle, even for short periods of time. If we suffer a loss of any tools, stock or equipment from an unlocked vehicle, we will deduct the cost of replacement of such from any wages or other monies owing to you.

Vehicles should not have keys left in the ignition, irrelevant of the time period involved, without the driver being sat in the driving seat. All vehicles should be locked when no-one is in attendance. If a vehicle is stolen or damaged under such circumstances we will deduct the cost of the insurance excess from your wages or any other monies owing to you.

Upon termination of employment, or upon commencement of Garden Leave, you must return all our property to us. This includes, but is not limited to, tools, equipment, documentation, vehicles, work-wear, items of uniform, keys etc. If you fail to return all items to us in a reasonable condition, we will deduct the cost of recovery, replacement or any loss incurred by us from any monies owing to you.

Your required notice period will be detailed in your individual Statement of Particulars. If you fail to work your notice and we incur a cost in covering your duties, we reserve the right to recover this cost from any monies owing to you.

The above clauses are express terms of your contract of employment.